

# Your Legal Help Guide

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**PRIVATE:** This document has your personal legal information. Don't share it without talking to a lawyer first.

## Your Case Information

|                              |                             |
|------------------------------|-----------------------------|
| Your State                   | CA                          |
| Where You Are in the Process | arrest                      |
| Are You in Jail              | detained                    |
| Do You Have a Lawyer         | No                          |
| Charges                      | Assault (240) - MISDEMEANOR |

## Overview

You have been arrested and are currently in custody. The most important thing right now is to get a lawyer - ask for a public defender if you cannot afford one. Do not make any statements to police without a lawyer present. The outcome will depend on the strength of the evidence and your defense strategy.

## Understanding Your Charges

*Here's what these legal terms actually mean in plain English.*

### Assault - MISDEMEANOR

This is a misdemeanor charge, which is generally less serious than a felony. Misdemeanors can still result in jail time, fines, and a criminal record. Your attorney can explain what the prosecution needs to prove.

*Remember: The prosecution must prove every element of these charges beyond a reasonable doubt. Your attorney can help identify which elements may be challenged based on the evidence.*

## Urgent Takeaways

- **URGENT:** Stay silent - don't answer questions without a lawyer
- You must see a judge Within 48 hours (72 hours if arrested on weekend)
- **CRITICAL:** Ask for a public defender right away if you can't afford a lawyer
- **URGENT:** Seek medical attention if injured

- URGENT: Contact attorney
- URGENT: Document any self-defense claims

## Immediate Actions (Next 48 Hours)

- ☐ [URGENT] Ask for a public defender right away if you can't afford a lawyer
- ☐ [URGENT] Stay silent - don't answer questions without a lawyer
- ☐ [URGENT] Ask for a lawyer before any questioning
- ☐ [URGENT] Do what police say, but tell them you want a lawyer
- ☐ [URGENT] Write down your booking number and where you are
- ☐ [URGENT] Seek medical attention if injured
- ☐ [URGENT] Contact attorney
- ☐ [URGENT] Document any self-defense claims
- ☐ [MEDIUM] Seek medical attention for any injuries
- ☐ [MEDIUM] Document all injuries with photographs
- ☐ [MEDIUM] Gather contact information for witnesses
- ☐ [MEDIUM] Avoid contact with alleged victim

## Important Dates

| Event               | Timeframe                                            | Priority | Description                                            |
|---------------------|------------------------------------------------------|----------|--------------------------------------------------------|
| Arraignment Hearing | Within 48 hours<br>(72 hours if arrested on weekend) | CRITICAL | First court appearance where charges are formally read |
| Discovery Deadline  | 30 days after arraignment                            | NORMAL   | Exchange of evidence between prosecution and defense   |

## Documents You Should Have

*These documents are important for your current stage in the legal process.*

| Document          | What It's For                                    |
|-------------------|--------------------------------------------------|
| Citation / Ticket | Official document showing charges and court date |
| Arrest Warrant    | Court order authorizing your arrest              |
| Property Voucher  | Receipt for items taken during arrest            |

| Document               | What It's For                          |
|------------------------|----------------------------------------|
| Booking Papers         | Processing documents from jail intake  |
| Miranda Acknowledgment | Form showing you were read your rights |
| Arraignment Notice     | Notice of your first court appearance  |

## Your Legal Rights

- Right to remain silent
- Right to attorney representation
- Right to reasonable bail
- Right to fair and speedy trial
- Right to confront witnesses
- Right to present defense evidence
- Right to self-defense claim
- Right to medical examination
- Right to witness testimony

## Recommended Next Steps

1. Contact attorney or request public defender
2. Notify family/employer of situation
3. Gather bail money and documentation
4. Prepare for arraignment hearing

## Evidence to Gather

- ☐ Medical records
- ☐ Witness statements
- ☐ Video surveillance
- ☐ Physical evidence

## Important Warnings & Court Preparation Checklist

- \* Do not discuss your case on social media

- \* Avoid contact with witnesses or alleged victims
- \* Comply with all court orders and bail conditions
- \* Limited time to prepare defense while in custody
- \* Maintain good behavior to preserve bail eligibility

## ! Actions to Avoid

- Don't talk about your case with other people in jail
- Don't sign anything without a lawyer looking at it first
- Don't give up any of your rights
- Don't fight back or resist when being arrested
- Don't answer questions or make statements to police
- Do not discuss case with cellmates
- Do not sign any documents without attorney review
- Do not waive any rights

## Legal Resources & Contacts

| Type                   | Description                                          | Contact                                   | Hours                              | Website |
|------------------------|------------------------------------------------------|-------------------------------------------|------------------------------------|---------|
| Public Defender Office | Free legal representation if you qualify financially | Contact your local public defender office | Monday-Friday<br>8:00 AM - 5:00 PM | N/A     |
| Legal Aid Society      | Additional legal assistance and resources            | Local legal aid organizations             | Varies by location                 | N/A     |
| Court Self-Help Center | Information about court procedures and forms         | Located at courthouse                     | Court business hours               | N/A     |

## Case Timeline & Process

| Status | Stage               | Description                          | Timeframe                                            |
|--------|---------------------|--------------------------------------|------------------------------------------------------|
| [X]    | Arrest              | Taken into custody and booked        | Completed                                            |
| [ ]    | Arraignment         | Charges read, plea entered, bail set | Within 48 hours<br>(72 hours if arrested on weekend) |
| [ ]    | Preliminary Hearing | Court determines probable cause      | Within 10 court days for felonies                    |
| [ ]    | Discovery           | Evidence exchange and investigation  | Ongoing process                                      |
| [ ]    | Trial               | Presentation of evidence and verdict | 60 days if in                                        |

| Status | Stage | Description | Timeframe               |
|--------|-------|-------------|-------------------------|
|        |       |             | custody, 30 days if out |

## Practice Questions for Your Case

*Questions you may be asked and suggested responses*

### 1. Do you understand why you are being arrested?

#### Suggested Response:

"I understand. I would like to speak with an attorney."

*You don't need to agree or disagree with the charges. Simply acknowledge and request a lawyer.*

### 2. Would you like to make a statement?

#### Suggested Response:

"I would like to speak with an attorney before answering any questions."

*You have the right to remain silent. Use it. Anything you say can be used against you.*

### 3. What do you know about the Assault charge against you?

#### Suggested Response:

"I understand the nature of the charge. I would like to defer to my attorney for any specific details."

*Don't discuss details of your case without your attorney present. This protects your rights.*